9. The predominant purpose of the grant of immunity was to preserve an untrammeled press as a vital source of public information. P. 250.

10. Construction of a constitutional provision phrased in terms of the common law, is not determined by rules of the common law which had been rejected in this country as unsuited to local civil or political conditions. P. 248.

It is not intended in this case to suggest that the owners of newspapers are immune from any of the ordinary forms of taxation for support of Government. The tax in question is not an ordinary form of tax, but one single in kind, with a long history of hostile misuse against the freedom of the press. The manner of its use in this case is in itself suspicious; it is not measured or limited by the volume of advertisements, but by the extent of the circulation of the publication in which the advertisements are carried, with the plain purpose of penalizing the publishers and curtailing the circulation of a selected group of newspapers.

10 F. Supp. 161, affirmed.

APPEAL from a decree permanently enjoining the enforcement of a state tax on newspapers.

Mr. Charles J. Rivet, with whom *Mr. Gaston L. Porterie,* Attorney General of Louisiana, was on the brief, for appellant.

There is lack of jurisdiction.

The value of the disputed tax alone is the amount in controversy. *Healy* v. *Ratta,* 292 U. S. 263.

The tax in controversy must equal the jurisdictional sum as to each complainant. *Scott* v. *Frazier,* 253 U. S. 243; *Pinel* v. *Pinel,* 240 U. S. 594; *Cole* v. *Norborne Land Drainage District,* 270 U. S. 45; *Di Giovanni* v. *Camden Fire Insurance Assn.,* 296 U. S. 64.

The averments of the bill present no real and substantial federal question.

The statute assailed as unconstitutional furnished no means of action to the Supervisor of Public Accounts, charged with its enforcement, other than the institution of a suit in a court of competent jurisdiction, where